STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENTAL QUALITY
GRAND RAPIDS DISTRICT OFFICE

RICK SNYDER
GOVERNOR

DAN WYANT
DIRECTOR

November 13, 2015

Mr. Dale Kraker
Wolven Investments, LLC
3115 Railway Drive
Byron Center, Michigan 49315

Dear Mr. Kraker:

SUBJECT: Storm Water Construction Inspection
Notice of Coverage (NOC) No. MIR113489
Designated Name: 43 North – Site Condos

On November 10, 2015, the Department of Environmental Quality (DEQ), Water Resources Division (WRD) performed an inspection of the 43 North Condominium construction project in Rockford, Michigan. The purpose of this inspection was to determine compliance with NOC MIR113489 which was issued and became effective on July 31, 2015. Since the site disturbs at least five (5) acres of land or is part of a larger common plan of development and has a point source discharge of storm water to the waters of the state, it is subject to the storm water regulations Part 31 of the Natural Resources and Environmental Protection Act, Public Act 451 of 1994 as amended (NREPA), Title 40 of the Code of Federal Regulations (CFR) Part 122.26(a), and Michigan's Permit-by-Rule R323.2190.

The purpose of this letter is to notify you of our inspection and inform you of any issues or concerns observed. The following items were observed during our inspection.

1. Silt fence requires maintenance. Silt fence is down in at least two (2) locations at the west end of Lapham Court. Sediment should be removed where it has reached 50% the fence height on the west side of Lapham Drive. Sections of silt fence throughout the site have been joined improperly and gaps exist between the sections.

2. There is a potential for sediment to leave the work area and enter a wooded area at the southwest corner of Lapham Court and Lapham Drive. There is evidence of a concentrated flow leaving the excavated area and flowing towards and unprotected woody location.

Please respond in writing to items 1-2 above by **December 1, 2015**.

We appreciate your cooperation in these matters and your effort to maintain the project in a manner that is consistent with the NOC. The responsibility of maintenance of all soil erosion and sedimentation control measures and weekly/post runoff event inspections is required by your permit until the project site is completely stable and the NOC has been terminated.

Should you require further information, please contact me at 616-401-2352; stefanskib@michigan.gov; or the DEQ, WRD, Grand Rapids District Office, 350 Ottawa Avenue NW, Unit 10, Grand Rapids, Michigan 49503-2341.

Sincerely,

Brandie Jacobs Stefanski

Brandie Jacobs Stefanski
Senior Environmentally Quality Analyst

bjs/llr

cc: Mr. Dave Beck, Kent County Road Commission
Mr. Jack Dykstra II, Dykstra Excavating